



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

November 2, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202203431 (Incident Date: May 8, 2022) regarding Sergeant Alberto Jimenez, Tax No. 935069 (DADS No. 2023-29022)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that no disciplinary action is warranted in connection with the single allegation that Sergeant Jimenez forcibly removed an individual to the hospital.

In this matter the Police Commissioner has determined Sergeant Jimenez's actions did not rise to the level of misconduct, rather, he was ensuring the safety of the complainant, who he believed was in need of medical assistance. The Police Commissioner has determined that the preponderance of the evidence suggests that the complainant was incapacitated by alcohol and/or substances to the degree there was a likelihood to result in harm, if left alone. Sergeant Jimenez was concerned for the complainant's safety and believed she lacked the proper state of mind to care for herself. Further, a third party stated they feared for their life, because of how aggressive the complainant was acting towards them. In light of the investigation, the Police Commissioner determined it would have been dangerous and reckless to have left the complainant on her own, in what appeared to be an intoxicated and belligerent state. Sergeant Jimenez's priority was the well-being of the complainant.

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

Therefore, based on the foregoing, Sergeant Jimenez will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (Prohibited Conduct/Removal to Hospital).

Sincerely,

A handwritten signature in black ink, appearing to read 'AS Marino', with a long horizontal flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office